

STATE OF NEW YORK

8421--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 15, 2025

Introduced by M. of A. DINOWITZ, SEAWRIGHT -- read once and referred to the Committee on Judiciary -- recommitted to the Committee on Judiciary in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the civil practice law and rules, in relation to arbitration awards in consumer and employment disputes

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 7507 of the civil practice law and rules, as
2 amended by chapter 952 of the laws of 1981, is amended to read as
3 follows:

4 § 7507. Award; form; time; delivery. (a) Except as provided in section
5 7508, the award shall be in writing, signed and affirmed by the arbitra-
6 tor making it within the time fixed by the agreement, or, if the time is
7 not fixed, within such time as the court orders.

8 (b) In an arbitration involving a consumer dispute, pursuant to
9 section three hundred ninety-nine-c of the general business law, or an
10 employment dispute between an employer and employee, as defined in
11 section three of the Fair Labor Standards Act of 1938 (29 U.S.C. § 203)
12 but who is neither an officer nor employed pursuant to an individual-
13 ized, mutually-negotiated employment contract, where arbitration was
14 held pursuant to a contract, except where inconsistent with federal law,
15 the award shall state the issues in dispute and shall set forth an
16 explanation of the reasons for the award. Such award shall contain a
17 decision on all issues submitted to the arbitrator. The provisions of
18 this subdivision shall not apply to agreements negotiated with any labor
19 union through collective bargaining.

20 (c) The parties may in writing extend the time either before or after
21 its expiration. A party waives the objection that an award was not made
22 within the time required unless ~~he~~ such party notifies the arbitrator

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 in writing of [~~his~~] their objection prior to the delivery of the award
2 to [~~him~~] such party.
3 (d) The arbitrator shall deliver a copy of the award to each party in
4 the manner provided in the agreement, or, if no provision is so made,
5 personally or by registered or certified mail, return receipt requested.
6 § 2. This act shall take effect on the one hundred eightieth day after
7 it shall have become a law.